



Fiona Stanley Fremantle Hospitals Group

Procedure

Police Interviews in Mental Health Inpatient Areas

Reference #: FSFH-MENH-PRO-0009

Scope

Site	Service/Department/Unit	Disciplines
Fiona Stanley Hospital Fremantle Hospital	Mental Health Service	Medical, Nursing, Allied Health.

1. Introduction

There may be occasions where voluntary or involuntary patients are required to be interviewed by police whilst an inpatient. This document provides direction to clinical staff to ensure police interviews are conducted in line with the Charter of Mental Health Care Principles.

2. Terminology

Charter of Mental Health Care Principles	A schedule to the Mental Health Act 2014 related to patient centred care, the recovery approach, and the involvement of carers. It outlines the expectations for patients who receive care and treatment at mental health services.
Capacity	A patient has capacity if he/she is capable of: • understanding the information being given, the nature of the decision and its consequences • retaining the information as necessary to make the decision • using and weighing the information in the decision-making process • communicating their decision in some way. Capacity must always be assessed in the context of the decision that is to be made. Adults are presumed to have capacity unless shown otherwise whereas children do not have capacity.
Mental Health Advocate	A person engaged under the Mental Health Act 2014 to provide a mental health advocacy service to an identified person.

Personal Support Person (PSP)	Person who is supporting someone who is experiencing mental illness. May be any of the following: close family member, carer, nominated person, the parent or guardian of a child and any guardian or enduring guardian adult.
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3. Procedure

3.1. Police interview

- All individuals have a right to silence and legal representation including when admitted as an inpatient
- The treating consultant will inform the Head of Service of all requests by Police to interview a patient (wherever possible).
- If Police request to interview a patient the treating Consultant will review the patient and assess whether the patient is fit to be interviewed and document their determination in the Digital Medical Record (DMR). Consideration will be given to:
 - nature of the interview and its purpose
 - whether the patient wishes to be interviewed
 - capacity to give consent to be interviewed
 - age of the patient
 - whether the interview will have an acute negative impact on the patient
- The treating Consultant will inform the inpatient Social Worker and Nurse Unit Manager (NUM) of the request for Police interview.
- The Social Worker must be involved with all patients with legal matters to ensure the patient is aware of their legal rights and assisted to obtain appropriate legal representation or advocacy support.
- If a voluntary patient is assessed as fit for Police interview the treating Consultant will inform them that they have a right to silence, the option to request legal representation and/or have an advocate present during the interview:
 - young persons under 18 years must have an adult present at any Police interview including a parent/guardian or legal representative.
- If an involuntary patient is assessed as fit for interview the treating Consultant/NUM will ensure the patient:
 - is supported by their PSP
 - is supported by an adult if under 18 years e.g. parent/guardian or legal representative
 - has appropriate legal representation
 - is supported by the Social Worker in addition to the PSP or in the absence of the PSP

- If a patient is assessed as unfit to be interviewed, the treating Consultant will inform the Head of Service in writing/email of their decision and inform the Police of an approximate time frame when the patient will be ready for interview.

Police powers of arrest take precedence over the provisions of the Mental Health Act 2014.

- If a patient agrees to participate in an interview and the Police indicate that they wish to videotape the Head of Service/ Duty Consultant Psychiatrist must be informed prior to this occurring. Staff will ensure this occurs in the most appropriate setting to maintain confidentiality for all patients.

3.2. Police request for information

- In the event police attend a ward requesting a patient's medical records or information, the matter must be referred to Medicolegal Services.

A staff member must NOT make a statement to the Police regarding the patient's behaviour/actions, even if they believe that such a statement will exonerate the patient.

- If a Police Officer requests a photograph of a patient to assist in their enquiries, staff will make every attempt to provide a colour photograph if one exists in the DMR.
- Requests by the Police for the release of information pertaining to the patient can be actioned if the patient is assessed as competent and consents to the release of information in accordance with the Release of Medical Record Information: Mental Health Procedure. The patient will be encouraged to seek legal advice where appropriate.

3.3. Firearms

- For the purposes of ensuring the highest firearm safety, it is WA Police policy that officers will carry their accoutrements including firearms on their person at all times when attending Department of Health services including hospitals.

4. Compliance/performance monitoring

Compliance will be monitored by the Head of Service via routine clinical incident reporting and feedback from the Mental Health Advocacy Service and/or Patient and Family Liaison Services.

5. Related policy documents

WA Health:

- [Consent to Treatment Policy MP 0175/22](#)

FSFHG:

- Release of medical record information: mental health (FSFH-MENH-PRO-0002)

6. Related documents

- [Mental Health Act 2014](#)
- [Freedom of Information Act](#)
- [Firearms Act](#)

7. Related standards

NSQHS Standards:

- Clinical Governance
- Comprehensive Care
- Communicating for Safety

The Chief Psychiatrists Standards for Clinical Care

- Care planning
- Consumer and carer involvement in individual care

8. Authorisation

EXECUTIVE SPONSOR: Service Director – Service 5					
Version	Date Issued	Compiled/Revised By	Committee/Consumer Group Consulted	Endorsed By	Revision due
1	10/2020	Nurse Unit Manager, W4.1	Service 5 SQRC	FSFHG Policy Committee	10/2023
2	02/2024	Nurse Unit Manager, W4.1		Service 5 SQRC	03/2028